

Section III: State Agency Procedure Manual

XI. State Civil Rights

A. Program Complaints

Purpose

The Montana WIC Program has an established process for accepting and resolving all program complaints.

Policy

It is the policy of the Montana WIC Program to accept all complaints regarding the WIC Program and to resolve them accordingly.

1. Complaints

- All complaints will be recorded using the *Program Complaint Form* located as an attachment to the State Plan and linked on our www.wic.mt.gov website.
 - Anyone may complete the form and submit for review.
 - All complaints will immediately be sent to the State Office for review and follow-up.
- Information submitted must be sufficient to clearly identify all parties involved. However, complainants may choose to remain anonymous.
 - Use the *Program Complaint Form* to collect the following information:
 - Date, time, location, and persons involved in the incident
 - Name and signature of person taking the complaint and making the complaint (if not anonymous)
 - Summary of the incident
- If the State Office determines the complaint may involve discrimination or a violation of civil rights, the complaint will be forwarded to USDA Office of the Assistant Secretary for Civil Rights and Montana DPHHS Human Resources Civil Rights/EEO Specialist.
 - The complaint will be logged on the Civil Rights Complaint log on at the State Office and tracked through resolution.
 - If the State Office determines the complaint does not involve a violation of civil rights, the complaint will be logged and processed at the State and Local level, depending on the nature of the complaint.
 - All complaints will be initially followed up upon within three days of receipt by the State Office.
- If the complaint involves potential fraud or abuse by a participant, retailer or WIC staff member, the *Program Compliance Form* will be used to document the investigation and next steps.
- If warning, counseling, or disqualification is determined to be the outcome for a participant, the Local Agency will be sent all the information to complete the activities, document in the chart, and report back to the State Office.
- The State Office will handle all financial penalties (restitution) or retailer disqualification actions
- Appropriate parties will be notified as needed (i.e., legal, law enforcement, USDA, etc.)